

Jashubhai vs State

Author: Anant S. Dave

Bench: Anant S. Dave

CR.MA/17772/2011 4/ 4 ORDER

IN
THE HIGH COURT OF GUJARAT AT AHMEDABAD

CRIMINAL
MISC.APPLICATION No. 17772 of 2011

With

CRIMINAL
MISC.APPLICATION No. 17773 of 2011

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JASHUBHAI
RAMABHAI PATEL & 8 - Applicant(s)

Versus

STATE
OF GUJARAT & 1 - Respondent(s)

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Appearance :
MR
DEVANG J JOSHI for
Applicant(s) : 1 - 9.
MR JK SHAH APP for Respondent(s) : 1,
MR
VIJAY H NANGESH for Respondent(s) : 2,
MS. REKHA M PATEL for
Respondent(s) :
2,
=====

CORAM

:

HONOURABLE

MR.JUSTICE ANANT S. DAVE

Date
: 29/03/2012

COMMON
ORAL ORDER

Petitioner Nos.1, 2, 3 and 4 are father-in-law, mother-in-law, brother-in-law and wife of brother-in-law and petitioner Nos.5, 6, 7 and 8 are not so close relatives-in-law, of complainant, who have filed Special Criminal Application No. 17772 of 2011 with a prayer to quash and set aside criminal complaint being CR No.II-3034 of 2011 registered with the Mahila Police Station, Sabarkantha at Himmatnagar for the offences punishable under Sections 498, 323, 504, 506(2) and 114 of the Indian Penal Code. Petitioners of Special Criminal Application No.17773 of 2011 are father-in-law, mother-in-law, brother-in-law and uncle-in-law of the complainant, who have prayed to quash and set aside criminal complaint being CR No.I-321 of 2011 registered with the Himmatnagar Town Police Station, Sabarkantha for the offences under sections 406, 420, 467, 468 and 120-B of the Indian Penal Code.

2. Learned advocate for the petitioners submits that marriage of complainant with late son of the petitioner No.1 took place as early as on 17.05.1997 and out of the wedlock two children were born, who are now aged about 13 and 8 years respectively. The husband of the complainant suffered very serious ailments, including liver cirrhosis and the complainant left for United Kingdom for further studies in the year 2009. In the meanwhile, the two children of the complainant stayed with the petitioners. On 16.01.2010 customary divorce was signed by late son of the petitioner No.1 and husband of the complainant in presence of witnesses thereof and other relatives, which was sent for signature of the complainant at U.K. The complainant also signed the customary divorce deed on 29.01.2010 with specific note that she had signed under compulsion and duress of her in-laws and such divorce was not acceptable to her. The son of the petitioner No.1 and husband of respondent-complainant died on 24.01.2010. The petitioner No.1 prepared a `will' on 16.01.2010 by which 50% of the share in the property was given to children of the respondent No.2 and grand-children of the petitioner No.1 and even amount of insurance payment was also assigned in

favour of children. It is further submitted that on the basis of the divorce deed and `will', entries were mutated in the revenue record, and therefore, the complaints impugned are nothing but a short-cut and easy mode adopted by the complainant to claim share in the property of the petitioners and to cause undue harassment to the petitioners. It is further submitted that considering the facts and circumstances of the case, the impugned complaints may be quashed or in the alternative be stayed till final disposal of both the petitions.

3. Per contra, Mr. Ashish Dagli, learned advocate for the respondent-complainant submits that her husband suffered liver cirrhosis due to excessive consumption of alcohol, and therefore, she had no other option but to go to United Kingdom to pursue her further studies and accordingly she had completed her Diploma in Business Management during January, 2010. It is further submitted that during the above period only, customary divorce deed and `will' were created and she had objected and protested customary divorce since all this is done at the behest of petitioners only with a view to deprive the complainant of her share and right in the ancestral as well as self-acquired property / assets of her husband. It is further submitted that each and every allegation made in the complaints would constitute offence and the investigation carried out so far would disclose that the deed of customary divorce and `will' were prepared only with a view to deprive the respondent-complainant of her right to the property. It is, therefore, submitted that no relief, as prayed for, by the petitioners be granted.

4. Heard learned APP for the respondent - State of Gujarat.

5. Considering the nature of dispute between the widow-respondent No.2 and her in-laws and deed of customary deed, prima facie it appears that the respondent No.2-complainant-widow had raised specific objection and though not approved the customary divorce signed under duress and pressure exerted by her in-laws. At the same time by will dated 16.01.2010, 50% of the property / assets are assigned in favour of grand-children of the petitioners, children of the complainant and entries were mutated in the revenue record accordingly. However, name of the respondent-wife is not reflected anywhere though decree of divorce under the Hindu Marriage Act is not obtained. It is unfortunate that the documents in question were executed only a few days before the death of the husband of the complainant and son of petitioner No.1 and veracity or otherwise of the documents in question cannot be gone into at this stage by this Court. The complainant is at liberty to initiate proceedings in accordance with law, including proceedings before the revenue authorities for cancellation of entries. However, at this stage, considering the nature of dispute between the parties, keeping it open for the parties to settle the dispute amicably, I am inclined to issue rule and stay the impugned proceedings.

6. In view of the above, issue Rule.

Mr. J.K.Shah, learned APP and learned advocate Mr. Vijay H. Nangesh waive service of notice of rule for respective respondents.

Proceedings pursuant to the impugned complaints in each of the petitions shall remain stayed till final disposal of the petitions.

It is made clear that the above observations are tentative in nature and will not come in the way of pending proceedings or the proceedings that may be undertaken by the parties.

[Anant S. Dave, J.] *pvv